

LORI SKIPPER
900 9th Ave East
Palmetto, FL 34221

**IN THE COUNTY COURT OF THE 12TH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION**

FILED FOR RECORD
2022 MAR -1 PM 1:29
CLERK OF CIRCUIT COURT
MANATEE CO. FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC

ET AL

Plaintiff AND CROSS COMPLAINT
DEFENDANT,

vs.

LORI SKIPPER,

DEFENDANT, CROSS COMPLAINT
PLAINTIFF

CASE NUMBER: 2021CA4553

DEFENDANT'S ANSWER TO PLAINTIFF'S MOTION TO DISMISS

1. On November 4, 2021, Colonial Manor commenced this suit by filing its Complaint in the Twelfth Judicial Circuit. Colonial Manor's Complaint alleges three counts based on an unproven allegation claiming Defendant's breach of fiduciary duty and breach of contract. Colonial Manor's Complaint also seeks declaratory and injunctive relief.

2. Colonial Manor filed suit against Defendant following Defendant's alleged destruction of Colonial Manor's company property and alleged use of confidential resident information in violation of Defendant's non-existent Employment Agreement with Colonial Manor, which the Plaintiff seems to be unable to produce and to date has produced an employment agreement between the Defendant and a different employer in a deliberate attempt to mislead the Court.

Defendant allegedly intentionally and materially breached her Employment Agreement with Colonial Manor which has never been produced in an executed form, and has allegedly used her knowledge of Colonial Manor's confidential business information to Colonial Manor's detriment, which has also not been proven, specified or evidenced.

Defendant's actions allegedly have also circumvented and interfered with Colonial Manor's business relationships and relationships with its tenants and none of these claims have been supported in any shape or form.

3. On November 23, 2021, Defendant filed an Answer to Colonial Manor's Complaint wherein she admitted to destroying Colonial Manor's company property with the approval and direction of the Plaintiff's Corporate President, C. Nathan Nelson and was done as a result of personal information being leaked from the office to outside individuals as proven by attached affidavits marked as Defendant's **Exhibits 1, 2 and 3**.

4. In addition to her Answer, Defendant filed a Counterclaim which appears to allege three counts: (1) gender discrimination pursuant to Florida Statute section 760.07; (2) Colonial Manor's Complaint contains false statements pursuant to Florida Statute section 837.06; and (3) Colonial Manor has violated Florida Statute section 723.054.

5. Plaintiff believes Defendant's Counterclaim must be dismissed because the claims are defectively pleaded, fail to state a cause of action, and Defendant failed to exhaust her administrative remedies. Defendant disagrees with this frivolous claim in whole as stated in her Amended Complaint.

ARGUMENT

Standard of Review

6. Whether a complaint should be dismissed is a question of law citing “City of Gainesville v. State of Fla, Dept of Tramp., 778 So. 2d 519,522 (Fla. 1st DCA 2001). "A motion to dismiss for failure to state a cause of action admits all well pleaded facts as true, as well as reasonable inferences that may arise from those facts." Griffis v. Bridle Oaks Estate, LLC, No. 51320-2682, 2021 WL 4341305, *1 (Ma. 5th DCA Sept, 24,2021) (citing Palumbo v. Moore, 777 So. 24 1177, 1178 (Fla. 5th DCA 2001)); Nat Weaver, Inc. v. Fend, 701 So. 2d 121, 121 (Fla. 5th DCA 1997). "Those allegations are then reviewed in light of the applicable substantive law to determine the existence of a cause of action." Blue Supply Corp. v. Novas Electro Mech., Inc., 990 So. 2d 1157, 1159 (Fla. 34 DCA 2008) (citing Peeler v. Indep. Life & Accident Ins. Ca, 206 So. 2d 34,36 (Fla.3d DCA 1967)). Defendant has stated clearly and supported all of her claims and counterclaims, therefore Plaintiff's Motion to Dismiss must fail.

7. Similarly, in determining a motion to dismiss for lack of standing, the court must confine its review to the four corners of the complaint, draw all inferences in favor of the pleader, and accept all well-pled allegations in the complaint as true. Llano Fin. Gtp., LLC v. Yespy, 228 So. 3d 108, 111 (Fla. 4th DCA 2017). "Mere legal conclusions are not sufficient unless substantiated by allegations of ultimate fact. Every fact essential to the cause of action must be stated distinctively, definitely and clearly." Loving v. Viecelli, 164 So. 2d 560,561 (Fla. 3d DCA 1964) (citing Ocala Loan Co. v. Smith, 155 So, 2d711, 716 (Fla. 1st DCA 1963)).

8. Based on the actions of the Plaintiff's Attorney at the hearing held on February 14, 2022 Plaintiff's counsel deliberately and maliciously made a misleading statement to this Court claiming that ***“it is our current understanding that the Defendant does not own a home”***. The very statement of that to the court is both misleading and an attempt to influence the court with

false information. The Defendant's lease is attached as **Exhibit 4** along with copies of the titles to her home clearly identifying the Defendant as the homeowner with no liens or encumbrances.

This is just another time that the Plaintiff's counsel has either lied or obfuscations and therefore the Defendant refuses to accept any arrangement, discussions or agreements that are not in writing.

9. The Defendant's Counterclaims are in compliance with the Florida Rules of Civil Procedure Rule 1.110 of the Florida Rules of Civil Procedure requires Defendant to plead "a short and plain statement of the ultimate facts showing that the pleader is entitled to relief." Fla. R. Civ. P. 1.110(bX2). Defendant's Counterclaims fully comply with this pleading requirement because they incorporate the allegations of ultimate fact needed to support the claims for relief in that the Defendant has stated the facts to support each and every one of her claims and has supported her claims with direct statements and now supports them with even further exhibits which are attached hereto. The Plaintiff, through their counsels have made unverified claims, as admitted to during the hearing on the 14th of February: **at 9:07 minutes into the hearing, counsel stated "...and moreover the complaint is not verified or attested to"** while speaking of the Plaintiff's complaint, all but admitting there were misleading and false statements made and filed. Going further, counsel stated during that same hearing on multiple times including **1:10, that Defendant is a renter, and at 6:37 minutes restates that Defendant is a renter, and at 7:10 minutes further claims an eviction proceeding had or was taken on form**, all of which is false and Defendant has not only attached her lease agreement to this petition but has also attached the titles to her home proving ownership and both have been dated on or about 9/23/2021 which clearly indicates the Defendant is an approved homeowner and legal tenant of Colonial Manor.

10. The Defendant's Counterclaims are not deficient in that she did properly name the relevant parties pursuant to Florida Rules of Civil Procedure. Defendant has named Colonial Manor MHC Holdings, Inc, et al, as the "Counter Complaint Defendant". The Defendant's counterclaim is clear regarding at the time of filing who Defendant named as the Counter Complaint Defendant and is now, as a result of research and information, able to identify other Defendants including Nate Nelson who is the direct supervisor of the Colonial Manor facility and hires the local staff who are employed there including the current Park manager, Cheryl Peaks a current employee of the park, who has freely provided phone numbers and contact information to outside parties of various homeowners and current Park tenants and Joe Nichols, who is a past Park manager, who later became an active member of the HOA, holding the office of President for two terms and frequently supplies and presents what Defendant believes is confidential information to the HOA as a whole during meeting and as recently as to name as February 14, 2022 produced a list of homeowners, tenants and their respective lot numbers. He is known to use that information to solicit and canvass the residents and further he and Cheryl Peaks most recently circulated a letter to certain residents which they purport was an official document from the City of Palmetto, even though it was not on any letter head indicating same, and is attached labeled as **Exhibit 5**, Cheryl Peaks has also created several new park rules, all approved by Mr. Nelson, none of which went through the contractual rule change process which is also attached to this pleading and marked as **Exhibit 6** one of which states that Colonial Manor no longer has proper liability insurance on the Clubhouse which is a public structure, a copy of which is attached hereto as **Exhibit 7**.

11. The Defendant uses "et al." as a means of including future parties who were not known at the time of filing and for any and all individuals who may be related to this case.

Although Plaintiff's counsel refers to Fla. R. Civ. P. 1.00(01); 1.170(h) which only states additional parties must be served and since they have only recently been identified, they shall be served in the near future.

12. In respect to the one named Counter-Defendant - Colonial Manor MHC Holdings, Inc., this was an oversight typographical error, later corrected in the Defendant's amended pleading to read Colonial Manor MHC Holdings, LLC and had Plaintiff's counsel read the Amended Cross Complaint they would have seen this.

Count Discriminatory Actions Based on Gender

13. Defendant's individual counts are not deficient and do not provide a further basis for dismissal. Counterclaim Count 1 does not appear to allege that Defendant suffered from gender discrimination during her employment with Colonial Manor. In fact it addresses being sued by the Plaintiff only *after employment terminated*. The Defendant clearly stated that she was treated differently than a male former employee after he left his employment.

14. Defendant concedes that she left her position with Colonial Manor to accept a position with a different facility at the request of the facility owner who is Kingsley Management, Nate Nelson President and that same Company owns Colonial Manor..

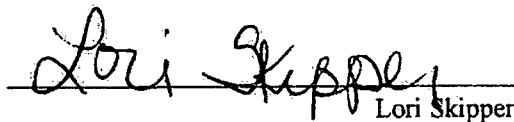
15. Defendant states that Colonial Manor's Complaint contains false and misleading statements in violation of Florida Statute section 837.06. In sum, Defendant's second count attempts to raise criminal issues in a civil action. Section 837.06 is a criminal statute providing that whoever knowingly makes a false statement in writing with the intent to mislead a public servant is guilty of a second-degree misdemeanor. § 837.06, Fla. Stat. (2021). Based on the statements made by Plaintiff's attorney, it can fairly lead one to believe that filing Court

documents, through an attorney in Manatee County is OK so long as the complaint isn't verified or sworn to by the Plaintiff. Further, based on the Plaintiff's counsel's statements I believe they are requesting that this matter be handed over to the Prosecuting Attorney's Office for handling.

16. Lastly, Defendant does claim and has evidenced through previous filings and also by an exhibit filed by the Plaintiff which is a copy of a cease and desist letter that Colonial Manor and Kingsley Management through the direction of Nate Nelson has violated Florida Statute section 723.054. Section 723.054 prohibits any bylaw, rental agreement, regulation, or rule pertaining to a mobile home park to infringe upon certain rights of mobile home owners or tenants to peaceably assemble or canvass. See § 723.054, Fla. Stat. (2021). Defendant has filed with the Court copies of correspondence from Colonial Manor that clearly indicate Colonial Minor has implemented any bylaw, rental agreement, regulation. or rule that infringes upon any tights of its mobile home owners or tenants. In support of her allegations Defendant again attached no less than 6 Exhibits to this pleading.

WHEREFORE, Defendant asks this Court to dismiss the Plaintiff's motion and based on statements that were both filed with this Court and stated during hearing, asks this Court to impose sanctions on both the Plaintiff and Plaintiff's Counsel for the conduct displayed by their malicious claims to date.

Respectfully Submitted this 3rd day of March, 2022 by and for:

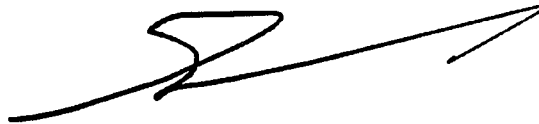

Lori Skipper
Defendant

CERTIFICATE OF SERVICE

Facsimile: (850) 425-6694

I HEREBY CERTIFY that a true and correct copy of the foregoing has been served by George Yeske via US Mail with postage attached on March 1, 2022 to:

Christopher Lunny
Radey Law Firm
301 South Bronough Street
Suite 200
Tallahassee, Florida 32301
Telephone: (850) 425-6654

A handwritten signature in black ink, appearing to be 'G. Yeske', written over a horizontal line.

George Yeske 702-466-3954
900 9th Ave East
Palmetto, FL 34221